

25STCV28582 25STCV28582

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-22

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Case Number: 25STCV28582 Hearing Date: September 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 22, 2026 TRIAL

DATE: January 18, 2028

CASE: Chris Friend v. San Marino Street Properties, LLC, et al.

CASE NO.: 25STCV28582

PLAINTIFF'S

MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, REQUESTS FOR DOCUMENTS, AND REQUESTS FOR ADMISSIONS

I. INTRODUCTION

Plaintiff Chris Friend ("Plaintiff") brings this premises liability and habitability action against defendants San Marino Street Properties, LLC ("SMSP"), Kamyar Shabani ("Shabani"), and Optimus Properties, LLC ("Optimus") (collectively, "Defendants"), arising from Plaintiff's tenancy at 1025 N. Serrano Avenue, Los Angeles, California 90029 (the "Property").

On June 30, July 2, and July 7, 2026, Plaintiff filed ten motions to compel further responses as follows: (1) Shabani's further responses to Set One of Form Interrogatories, Special Interrogatories, Request for Production of Documents, and Requests for Admissions; (2) SMSP's further responses to Set One of Form Interrogatories, Special Interrogatories, Request

for Production of Documents, and Requests for Admissions; and (3) Optimus's further responses to Set One of Special Interrogatories and Request for Production of Documents. Plaintiff requests sanctions against each defendant and their counsel of record.

On August 26, September 1, September 4, and September 8, 2026, Defendants filed oppositions. Defendants request sanctions against Plaintiff.

On September 2 and September 15, 2026, Plaintiff filed replies.

The court considers together the motions.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general. 22

California Rules of Court, rule 3.1345(a)(3) further requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.

Monetary Sanctions 22

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. 2 (Code Civ. Proc., § 2023.010.) 222

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.¿¿¿¿¿¿

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Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust.¿ (Code Civ. Proc., §§ 2030.300(d); 2031.310(h); 2033.290(d).)¿

III. DISCUSSION

A. Timeliness

Defendants argue the motions are untimely because they served verified responses on March 30, 2026, and there is no written agreement to extend the time for Plaintiff to bring these motions. Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.¿ (Code Civ. Proc., §§ 2030.300(c); 2031.310(c); 2033.290(c).)¿ The argument is not well taken. Defense counsel agreed, in writing, to extend the time for Plaintiff to file motions to compel. The extension of time was tied to responding to Plaintiff's May 4, 2026 meet and confer letter. Defendants never responded. Accordingly, the deadline to file this motion has not run. The court finds the motions are timely.[1]

B. Meet and Confer

Defendants next argue the motions should be denied because Plaintiff did not meet and confer as to every discovery request at issue. A motion to compel further responses to discovery must be accompanied by a meet and confer declaration.¿ (Code Civ. Proc., §§ 2030.300(b)(1); 2031.310(b)(2); 2033.290(b)(1).) The court has reviewed Plaintiff's declarations and is satisfied that he attempted to resolve

informally the majority of the issues prior to filing this motion. Because the meet and confer issue is cabined to select discovery requests, the court will address the challenge where appropriate.

A. Form

Interrogatories (FROG)

1. Shabani

FROG No. 2.5:

GRANTED. Shabani's objections lack merit. A further response is warranted.

FROG No. 12.6:

GRANTED. Shabani's objections lack merit. A further response is warranted.

FROG No. 12.7:

GRANTED. Shabani's objections lack merit. A further response is warranted.

FROG No. 17.1:

GRANTED as to subsections (b), (c) and (d). Shabani asserted meritless objections and incomplete responses. Further responses are warranted.

2. SMSP

FROG No. 12.4:

GRANTED. SMSP's objections lack merit. A further response is warranted.

FROG No. 12.6:

GRANTED. SMSP's objections lack merit. A further response is warranted.

FROG No. 12.7:

GRANTED. SMSP's objections lack merit. A further response is warranted.

FROG No. 17.1: DENIED. Plaintiff did not accurately state SMSP's response to this request.

B. Special

Interrogatories (SROG)

1. Shabani

SROG Nos. 1-8, 10:

GRANTED. Shabani asserted meritless objections. Further responses are warranted.

2. SMSP

SROG No. 5:

DENIED. Plaintiff did not attempt to meet and confer on this request.

SROG No. 7:

GRANTED. SMSP asserted meritless objections. A further response is warranted.

SROG No. 8: DENIED. Plaintiff did not accurately state SMSP's response to this request.

3. Optimus

SROG No. 4:

GRANTED. Shabani asserted meritless objections. A further response is warranted.

C. Request for

Production of Documents (RFP)

1. Shabani

RFP Nos. 1-5:

GRANTED. Shabani asserted meritless objections. Further responses are warranted.

2. SMSP

RFP No. 1:

DENIED. Plaintiff did not accurately state the correct discovery request.

RFP No. 7: GRANTED.

SMSP asserted meritless objections. A further response is warranted.

3. Optimus

RFP Nos. 1, 2, 3, 6, 7: GRANTED. Optimus asserted meritless objections. Further responses are warranted.

D. Requests for Admissions (RFA)

1. Shabani

RFA Nos. 1-4, 6-13:

GRANTED. Shabani asserted meritless objections. Further responses are warranted.

2. SMSP

RFA Nos. 3, 5:

GRANTED. SMSP asserted meritless objections. Further responses are warranted.

E. Monetary Sanctions

Plaintiff

requests sanctions against Defendants and their counsel of record. Given the court's ruling, the court finds sanctions are warranted. Because

Plaintiff's motions and supporting papers are poorly drafted, sanctions are imposed in reduced sums as follows: against Shabani and his counsel of record in the sum of \$1,000; against SMSP and its counsel of record in the sum of \$1,000; against Optimus and its counsel of record in the sum of \$500.

IV. CONCLUSION

The motions

to compel further are GRANTED and DENIED as indicated herein. Defendants are ordered to provide further responses to Plaintiff's discovery requests within 15 days of this order.

Shabani and

his counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$1,000. SMSP and its counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$1,000; Optimus and its counsel are ordered to pay, jointly and severally, sanctions in the sum of \$500. Sanctions are to be paid within 30 days of this order.

Plaintiff

to give notice, unless waived.

Dated: September 22, 2026

Brock T. Hammond

Judge of the Superior Court

[1] The court also notes the motions are timely for two other reasons. First, equitable estoppel applies in this matter. Even if the parties did not identify a "specific later date," Defendants' conduct lulled Plaintiff into believing he had more time to file the motions. Second, there is no proof that Defendants verified their discovery responses. Counsel may not verify a substantive response. Thus, if there are no verifications, Plaintiff's motions are timely for the separate reason that the time to file a motion to compel further is triggered by service of a verified response.